Terms and Conditions

Last Updated: October 8, 2026

1. General

These Terms and Conditions ("Terms") constitute a legally binding agreement between Supersize, Inc. ("Supersize," "we," or "us") and you ("you" or "User") regarding your use of https://solitaire.fun/ (the “Website”), mobile application (together with the Website, the “Platform”) and related services (collectively, the “Services”). These Terms also incorporate any guidelines, announcements, additional terms, policies, or disclaimers that we may issue or make available from time to time relating to your use of the Services.

2. Agreement to Terms

You must read these Terms carefully before accessing the Platform or using the Services. By accessing and/or using the Services, or by clicking accept to agree to these Terms, you acknowledge that you have read, understood, and agree to be bound by: (a) these Terms and other policies in place relating to your participation on the Platform and to comply with all requirements set forth herein, and (b) all applicable laws and regulations governing your use of the Services. Any new features or tools that are added to the current Services shall also be subject to these Terms.

PLEASE READ THESE TERMS CAREFULLY, AS THEY CONTAIN AN AGREEMENT TO ARBITRATE AND OTHER IMPORTANT INFORMATION REGARDING YOUR LEGAL RIGHTS, REMEDIES, AND OBLIGATIONS REGARDING YOUR USE OF THE SERVICES.

If you do not agree to all of these Terms or cannot comply with the requirements herein, you must not access or use the Platform or the Services. Certain features of the Services may be subject to specific supplemental terms and conditions, which will apply in conjunction with these Terms. In the event of any conflict between these Terms and any such additional terms, these Terms shall prevail unless expressly stated otherwise.

3. Amendments to Terms or Services

We reserve the right to change, update, add to, or remove provisions of these Terms at our sole discretion, from time to time, for legal and compliance purposes and without prior notice. Any such modifications will become effective upon their publication on the Platform or upon notification to Users, unless otherwise specified. It is your responsibility to periodically review these Terms to stay informed of any and all updates. Your continued use of the Platform and/or any Service after any modifications constitutes your continued acceptance and agreement to be bound by the revised Terms. If you do not agree with the amended Terms, you must immediately discontinue access to and use of the Platform and the Services.

We also reserve the right to modify or discontinue any part (or all) of the Services with or without notice, including, without limitation: (i) changing official contest and/or other applicable rules governing use of the Services, (ii) eliminating or discontinuing any content or feature(s), or (iii) changing terms of eligibility and/or any other requirements or guidelines governing your use of the Services. You agree that Supersize will not be liable to you or any third party for any modification, suspension or discontinuance of the Services. All changes shall be effective immediately unless otherwise stated. Your use of the Services after such changes have gone into effect shall be deemed to constitute your continued acceptance of and agreement to be bound by such changes. If you do not agree to any such changes, you should immediately cease accessing and/or using the Services.

4. Eligibility

By accessing the Platform and/or affirmatively accepting these Terms (for example, via a click-to-agree mechanism), you represent and warrant that:

a) you possess the full legal capacity and authority to enter into and be bound by these Terms;

b) you are at least 18 years of age, or the applicable legal age to enter into enforceable contracts under applicable law;

c) you are a legal resident of the United States with a United States address, and/or otherwise physically located in a jurisdiction in which participation in the Services is not prohibited by applicable law;

d) your use of the Platform does not violate, and fully complies with, all applicable laws, including but not limited to those

governing anti-money laundering, anti-corruption, and counter-terrorism financing;

e) you are not, and have never been, listed on any trade embargo, economic sanctions, or similar restrictions, such as the U.S. Office of Foreign Assets Control's Specially Designated Nationals list, the U.S. Department of Commerce's denied persons or entity list, or any equivalent lists enforced by the United Nations, European Union, or United Kingdom;

f) you are exclusively accountable for your Platform usage and, where relevant, for all actions conducted via the Platform; and

g) you commit to acting in good faith toward other Users' rights and will take all reasonable steps to uphold the purpose and objectives of these Terms.

Supersize employees, affiliates, and the immediate family and other household members (i.e., spouses, parents, grandparents, children, grandchildren, roommates, housemates, significant others, partners, siblings (half and full) and the steps of each of the foregoing) ("Immediate Family Members") of any of the foregoing are not permitted to play in any public contests for prizes; provided, however, employees and Immediate Family Members are permitted to play in the following contests and/or tournaments: sponsored Private Contests, Private Contests for cash, or Private Contests for prizes other than cash. A "Private Contest" is one that is not hosted by Supersize. A Private Contest may be hosted by another participating employee, relative, friend of the employee, or Immediate Family Member.

Supersize reserves the right, at any time, to request that you furnish proof of your identity, age and/or place of residence in order to continue accessing the Services. Your account may be suspended pending receipt of this information to verify your eligibility to use the Services. If Supersize determines that you do not meet the eligibility requirements, you are not eligible to use the Services and your account will be terminated.

5. Accounts

a) Account Registration You must register an account in order to access the Services. You may establish only one account per person. In the event Supersize discovers that you have opened more than one account, we reserve the right to suspend or terminate any or all of your accounts. Supersize reserves the right to identify, investigate, and restrict abusive behavior involving multiple wallets, accounts, or identities, including conduct commonly referred to as "multi-accounting" or "Sybil attacks." If Supersize reasonably suspects that multiple wallets or accounts are controlled by, associated with, or acting in coordination with the same User for abusive, manipulative, or unfair purposes, Supersize may, at its discretion, suspend access to the Platform and/or void any associated contest entries or rewards.

b) Account Information and Security By registering an account, you agree to provide true, accurate, current, and complete information, including, but not limited to, your age, full name, residential address, and a valid email address. You represent and warrant that all registration and account information you supply to us is complete and accurate and will be kept up to date. You are responsible for maintaining the accuracy of this information. We reserve the right to suspend or terminate your account should it be determined that you provided false or misleading information in registering your account. You are responsible for maintaining the confidentiality of your password and/or other account information. You acknowledge that you are and remain fully liable for any actions taken relating to your account, regardless of whether these actions were taken by you or an unauthorized third party. You acknowledge that we will not be liable for any losses incurred due to the unauthorized use of your account.

c) Termination or Suspension of Accounts You may close your account at any time. Supersize reserves the right to suspend your account for any period we see fit if we reasonably believe that your account is being used in violation of these Terms and/or applicable law(s). Additionally, Supersize reserves the right to suspend or immediately terminate your account and/or take reasonable legal action if we believe that you (i) are cheating or engaging in fraud relating to your use of the Services, or (ii) are under the legal age in the jurisdiction in which you reside or may access the Services.

d) Inactive Accounts We reserve the right to terminate inactive accounts. An "inactive account" means any account that has been inactive for greater than twenty-four (24) consecutive months or other period as required by applicable law. Users will be notified via email to their email address associated with his/her account upon inactivation.

6. Platform

a) Platform The Platform is a gaming platform where Users can play and compete in skill-based games. Users may connect their own wallet to pay entry fees directly to Solana-based smart contracts. Based on gameplay performance and calculation after the competition, smart contracts automatically distribute on-chain rewards, prizes, or other benefits in USDC or other supported digital assets to winners' wallets directly after the protocol deducts transaction fees.

b) Decentralized Protocol You acknowledge and agree that Supersize operates solely as an online platform facilitator and is not acting as a broker-dealer, custodian, investment advisor, or casino. Supersize does not oversee, manage, or participate in

the transactions and gameplay of Users. Users may interact directly with smart contracts for deposits, gameplay, and payouts. As it relates on-chain transactions, you acknowledge that Supersize does not hold, manage, or control any such User funds, and it does not store, transmit, or receive any such funds on Users' behalf. When engaging with the smart contracts, you maintain full control of your crypto assets through your personal digital wallet at all times. You are solely responsible for securing your private keys, and Supersize has no access to them.

In line with this decentralized design relating to on-chain transactions, you acknowledge there are no intermediaries involved in processing, matching, or managing orders and that Supersize serves no role as an intermediary, agent, or fiduciary for any User. Smart contracts handle all core functions transparently and immutably on-chain, eliminating the need for off-chain approvals, escrow services, or manual interventions. Notwithstanding, we reserve the right to request identity verification, source-of-funds documentation, or other personal information if required by applicable law, regulation, or a valid request from law enforcement.

You bear all risks arising from your use of the Platform and Services, including those related to crypto assets, blockchain networks, and decentralized protocols in general. Users bear full accountability for securing their private keys, wallet configurations, and compliance with blockchain network rules (for example, gas fees and transaction finality), as well as any associated risks, including smart contract vulnerabilities, network congestion, or irreversible transactions. The protocol's underlying software is open-source and operates on public blockchain networks. As such, you acknowledge and agree that (i) Supersize bears no responsibility for the functionality, security, or uptime of these networks; (ii) no assurances are provided regarding performance or availability; and (iii) the networks may undergo modifications or disruptions that could impact the protocol.

Users engage directly and autonomously with the protocol's smart contracts deployed on the Solana blockchain, enabling seamless peer-to-peer gameplay and reward distributions without any centralized oversight. The Platform functions solely as informational and access tools, providing a user-friendly front end to facilitate these on-chain interactions and we do not retain, access, or exercise control over Users' private keys, funds, or crypto assets at any point. All on-chain transactions are executed exclusively through Users' self-managed digital wallets, ensuring Users maintain sole custody and responsibility for their crypto assets. By participating and/or otherwise utilizing the Services, you confirm that you understand and accept these non-custodial dynamics (as applicable), which prioritize security and user sovereignty while adhering to the principles of permissionless innovation.

c) Fair Play and Prohibited Tools You are prohibited from engaging in any unfair or manipulative practices, including but not limited to collusion with other Users, coordinated entries intended to influence contest outcomes, the use of automated bots or scripts, exploitation of software bugs, and any other behavior designed to gain an unfair advantage.

d) Jurisdictional Restrictions Access to or use of the Platform may be restricted or illegal in certain jurisdictions. You are solely responsible for ensuring that your use of the Platform complies with all applicable laws in your jurisdiction. You agree we cannot be held liable if laws applicable to you restrict or prohibit your participation in any Services. Supersize makes no representations or warranties, express or implied, as to the lawfulness of your participation in any Services, nor shall any person affiliated, or claiming affiliation, with Supersize have authority to make any such representations or warranties. USE OF THE SERVICES IS VOID WHERE PROHIBITED OR RESTRICTED BY LAW. If you open an account and/or participate in any Services while located in a prohibited jurisdiction, you may be in violation of the law of such jurisdiction and will be in violation of these Terms and subject to having your account suspended or terminated. In addition, and without limiting any rights or remedies available to us, in the event of any violation of these Terms, all prizes (if any) may be voided, and in the event such have already been withdrawn by you, recouped by Supersize. It is your responsibility to determine whether the state, country, territory or jurisdiction in which you are located is a prohibited jurisdiction. Supersize reserves the right to monitor your location from which you access the Services in order to restrict access from any prohibited jurisdiction at any time.

7. Transactions and Wallets

a) Transaction Method Your account is not a bank account and is therefore not insured, guaranteed, sponsored or otherwise protected by any deposit or banking insurance system or by any other similar insurance system. All transactions on the Platform – including contest entries, in-game purchases, and reward distributions – may be conducted through blockchain-based wallets compatible with the Platform. Notwithstanding, we may use third-party electronic payment processors to process financial transactions executed through your use of the Services.

b) Supported Networks and Assets Supersize currently supports transactions conducted on Solana and accepts only the digital assets or tokens explicitly listed within the Platform. You must ensure that you are using a compatible wallet and transferring

supported assets; sending unsupported tokens or using non-compatible networks may result in permanent loss of funds, for which Supersize assumes no responsibility.

c) Transaction Fees and Limits Each blockchain transaction may incur network ("gas") fees determined by the relevant blockchain network, which are not controlled by Supersize. Any applicable limits, processing times, and minimum entry requirements will be displayed within the Platform prior to confirming your transaction.

d) Deposits You may deposit funds in your account upon the providing of necessary payment information. We may increase or decrease deposit limits as determined in our sole discretion and/or as required pursuant to applicable law(s). If any deposit is charged back or is otherwise uncollectible for any reason, the amount of the deposit and any prizes generated from your participation in real money contests from the time of the applicable deposit until its reversal or un-collectability shall be invalidated, forfeited and deducted from your account balance. Supersize reserves the right to close your account if a deposit is charged back, or if it is determined that you have violated any of the Terms at the time of making a deposit.

e) Payment Processing We may use third-party electronic payment processors and financial institutions (“Payment Processor(s)”) to process payments. You irrevocably authorize us to instruct such Payment Processors to handle transactions and you irrevocably agree that we may give such instructions on your behalf in accordance with your requests as submitted through the Services. Notwithstanding, you acknowledge that the terms between you and the Payment Processor(s) are governed by a separate agreement between you and such Payment Processor(s) and are not subject to these Terms. It is your responsibility to review such Payment Processor(s) terms and/or customer agreements, and you agree that we shall not be liable for any damages resulting from you and/or our use of any Payment Processor(s).

f) Contest Entries, Prizes, and Taxes Where required, Users may be required to pay entry fees to participate in specific skill-based contests. Contest results, rankings, and any prize distributions are determined by applicable Contest Rules (defined below) as published on the Platform. Prizes will be distributed to an eligible User's account (including, connected wallet, as applicable) automatically or within a reasonable period after the contest results are finalized. Supersize makes no representation or warranty regarding the tax implications of receiving any prize, and Users are solely responsible for any taxes, duties, or levies applicable under their jurisdiction. All taxes associated with the receipt of any prize are the sole responsibility of the winner. You are solely responsible for filing and paying any applicable taxes on winnings from using the Services. Supersize may send an IRS Form 1099-MISC or other appropriate form to any person who wins/withdraws in excess of $600 (USD) (net winnings less entry fees) in any given year.

g) Withdrawals You may withdraw funds from your account at any time so long as all prizes have been confirmed and you have satisfied our identification procedures, as applicable.

h) No Wagering or Gambling Supersize contests are skill-based competitions and do not constitute gambling, wagering, or betting. Contest outcomes depend on Users' ability to successfully execute gameplay and achieve high scores in accordance with the Contest Rules provided on the Platform. The Services may not be used for any form of illicit gambling.

8. Contest Participation

a) Eligibility to Participate To participate in any skill-based contest offered on the Platform, you must comply with all applicable eligibility requirements, and maintain sufficient funds in your account and/or connected wallet to satisfy any applicable entry fees. Supersize reserves the right to restrict participation from certain jurisdictions or to specific categories of contests at its sole discretion.

b) Contest Rules and Entry Each contest, tournament, or event made available through the Platform will be governed by its own specific rules ("Contest Rules"), including details on entry requirements, scoring mechanisms, prize allocations, and result determinations. Each contest that is not free to enter will have an entry fee listed. When you select to participate in a contest and complete the entry process, the entry fee will be debited from your account and/or connected wallet. By entering a contest, you agree to be bound by the applicable Contest Rules, in addition to these Terms. In the event of any inconsistency between these Terms and the Contest Rules, the Contest Rules shall prevail with respect to that contest.

c) Formation and Submission of Entries Users may be required to complete gameplay objectives or submit scores using the Platform before the contest entry deadline. Once submitted, entries are considered final and cannot be modified or withdrawn after the contest has commenced, except as expressly permitted by the Platform.

d) Determination of Results Contest outcomes are determined based on objective, verifiable data (for example, gameplay scores) as defined in the Contest Rules. The Platform may utilize on-chain mechanics, publicly available data sources, or ranking algorithms to determine the outcome of the competition and promote transparency and fairness.

e) Contest Results All contest results and rankings are final upon publication on the Platform. All contest outcomes or prize allocation are determined in accordance with the Contest Rules provided for the applicable contest.

f) Contest Errors Supersize is not responsible for any incorrect, invalid, or incomplete contest entry information; human errors; technical malfunctions; failures including public utility or Internet outages; omissions, interruptions, deletions, or defects of any system or network, data, computer equipment, servers, providers, or software, including without limitation any injury or damage to any Users' device relating to or resulting from participation in a contest; inability to access the Services, or any web pages that are part of or related to the Services; theft, tampering, destruction or unauthorized access to, or alteration of entries; data that is processed late or incorrectly or is incomplete or lost due to computer or electronic malfunction, or the Internet, or any service provider's facilities, or for any other reason whatsoever; typographical, printing or other errors, or any combination thereof.

g) Prizes We may offer contests either with or without real money or other prizes of value. Prizes are predetermined and made known in advance of entry. In the event that any legal authority challenges the awarding of any prizes to winners of a contest, Supersize reserves the right in its sole discretion to determine whether or not to award such prizes. Prizes will only be awarded if a contest is run to completion. No substitution or transfer of a prize is permitted, except that Supersize reserves the right to substitute a prize of equal value or greater if the advertised prize is unavailable. All prizes are awarded "as is" and without warranty of any kind, express or implied (including, without limitation, any implied warranty of merchantability for a particular purpose).

h) Promotional Activities/Release By entering into any contest, you agree that we may publicly display your username and contest records and grant Supersize and its affiliates a perpetual, worldwide, royalty-free, irrevocable, non-exclusive right and license to use your name, picture, voice, likeness, and/or biographical information relating to your account and to reproduce, modify, adapt, publish, publicly and digitally display, translate, create derivative works from, and/or distribute such materials or incorporate such materials into any form, medium, or technology, now known or later developed, throughout the world, and the right to copy, disclose, distribute, incorporate and otherwise use such material for any and all commercial or non-commercial purposes (including, without limitation, promotional, marketing or related purposes) without additional compensation

i) Contest Cancellation If for any reason a contest is not capable of running as intended, or if a contest, application, or service associated therewith (or any portion thereof) becomes corrupted or does not allow the proper function of a contest in accordance with these Terms or applicable Contest Rules, or if infection by a computer (or similar) virus, bug, tampering, unauthorized intervention, actions by players, fraud, technical failures, or any other causes of any kind corrupts or affects the administration, security, fairness, integrity, or proper conduct of a contest, Supersize reserves the right, in its sole discretion, to disqualify any User implicated in such action and/or to cancel, terminate, extend, modify or suspend the contest, and may select the winner(s) from all eligible entries received. If such cancellation, termination, modification or suspension occurs, a notification will be posted on the Services.

We also reserve the right to cancel, suspend, and/or void any entries where: (i) there is a technological failure or other act beyond our reasonable control, including, but not limited to, an act of God, hurricane, war, fire, riot, earthquake, terrorism, an act of public enemies, actions of governmental authorities outside of our control, national emergency, pandemic, protocol disruption, or other force majeure event (each, a "Force Majeure Event"); (ii) there is any issue with data used to run a contest; (iii) we suspect a breach any of these Terms; (iv) the integrity of the contest has been called into question; or (v) collusion between Users has, or is believed to have, taken place.

In the event a contest is cancelled for any reason, entry fees for that contest may be refunded to the Users' account (provided, such User(s) breach of these Terms is not the reason for cancellation).

9. Responsible Gaming

a) Users are responsible for monitoring their own participation in contests and for using the Platform responsibly.

b) Supersize may implement measures such as deposit limits, participation limits, or self-exclusion tools to promote responsible gaming and safe engagement with the Platform.

c) Users who experience difficulty controlling their participation or use of the Platform are encouraged to seek assistance from responsible gaming organizations.

10. Prohibited Activities and User Conduct

a) General Conduct Requirements You agree to use the Platform and Services solely for lawful purposes and in accordance

with these Terms. You must at all times act in good faith and in a manner that upholds the integrity of the Platform.

b) Prohibited Activities We reserve the right to investigate and take appropriate action against anyone who violates these Terms, including without limitation, removing the offending User from accessing the Services, suspending or terminating the account of the offending User and/or reporting the offending User to law enforcement authorities. Without limiting the generality of the foregoing, you agree that you will not, whether directly or indirectly:

i. Violate Laws or Regulations – use the Platform in any way that breaches any applicable laws, regulations, or orders of any governmental or regulatory authority, including but not limited to those relating to anti-money laundering (AML), counter-terrorist financing (CTF), anti-corruption, and securities trading;

ii. Misrepresentation and Fraud – create, use, or attempt to use multiple or false identities, impersonate another person, or engage in deceptive or fraudulent behavior, including manipulating contest results or reward outcomes;

iii. Exploitation or Collusion – collude with, or otherwise assist, any other User or third party to gain an unfair advantage in any contest, including sharing confidential contest data, coordinating entries, or manipulating gameplay outcomes;

iv. Use of Automated Tools – deploy bots, scripts, crawlers, scrapers, or any automated device or algorithm to interact with or extract data from the Platform;

v. Manipulation or Abuse – interfere with, disrupt, or compromise the normal functioning, security, or integrity of the Platform or Services, including exploiting bugs, vulnerabilities, or system errors;

vi. Unauthorized Access – attempt to gain unauthorized access to the Platform or Services, other Users' wallets, data, or systems, or perform any activity that could harm the security or performance of the Platform;

vii. Intellectual Property Infringement – use or distribute any content from the Platform (including data, text, graphics, logos, or code) without authorization or in a way that infringes any intellectual property or proprietary rights of Supersize or others;

viii. Data Harvesting or Mining – collect or attempt to collect information about other Users, including wallet addresses or personal data, without consent;

ix. Malicious Content – upload, transmit, or distribute any content or material that contains viruses, trojan horses, worms, logic bombs, or any other harmful code;

x. Market Manipulation or Price Gaming – use the Platform or related contests to manipulate the value, market perception, or performance of any digital asset or token;

xi. Circumvention of Restrictions – attempt to circumvent or bypass geographical, technical, or access restrictions for Restricted Countries, including the use of VPNs or proxy services to access the Platform from Restricted Countries;

xii. Offensive or Harmful Behavior – engage in harassment, abusive conduct, hate speech, or any activity that causes harm or distress to other Users or Supersize; and

xiii. Other Improper Use – use the Platform or Services for any purpose inconsistent with the intended design, functionality, or purpose of the Platform, or in any way that could bring Supersize or other Users into disrepute.

11. Smart Contracts and Automated Execution

You acknowledge and agree that the Platform may rely on smart contracts, blockchain protocols, and third-party or decentralized data sources to determine contest outcomes, scoring, rewards, or other automated results. These technologies are inherently experimental, volatile, and subject to risks beyond Supersize's control. You acknowledge that such technologies may be subject to errors, delays, inaccuracies, manipulation, or unintended behavior.

To the fullest extent permitted by law, Supersize shall not be responsible or liable for any incorrect, incomplete, delayed, erroneous, unavailable, interrupted, malfunctioning, or unexpected outcomes caused by smart contract execution, network congestion, or other blockchain-related issues. Where Supersize determines, in its sole discretion, that a contest or result has been materially affected by such issues, Supersize may cancel, suspend, void, or adjust the affected contest or outcomes.

You further acknowledge that any compensation, rewards, or settlements arising from a contest are limited to those executed automatically by the applicable smart contracts, and Supersize has no obligation to provide additional compensation, refunds, or remedies beyond such on-chain execution.

12. Intellectual Property

a) Service Content All title, ownership and intellectual property rights in and to the Platform and Services, including, but not limited to, all proprietary information, copyrights, patents, trademarks, trade secrets, or other proprietary rights contained

therein or provided therewith (collectively "Service Content"), are owned by Supersize (including, its licensors and/or licensees). You acknowledge and agree that the Platform contains proprietary and confidential information that is protected by copyright and other intellectual property laws. All Service Content is provided to you "AS IS" for your information and personal use only. Supersize makes no warranties or representations as to the accuracy of any Service Content. Nothing in these Terms or the Services should be construed as granting, by implication, estoppel, or otherwise, any license or right to use any of our trademarks or copyrightable works without our prior written permission in each instance. Your misuse of any trademark(s), copyright(s), or any other Services Content is strictly prohibited

b) User License Subject to your compliance with these Terms, Supersize grants you a limited, non-exclusive license to access and use the Services on your computer, tablet, smart phone or other device for your personal and non-commercial use only. No part of any material, content, intellectual property, or data provided as part of the Services may be reproduced in any form or incorporated into any information retrieval or artificial intelligence (AI) system, other than for your personal use (but not for resale or redistribution). You acknowledge and agree that this license does not grant you the ability to reproduce, distribute, assign, sublicense, sell, prepare derivative works, or conduct any other such activity related to the Service Content found on or through the Services, except as expressly provided by these Terms. Supersize reserves all rights in and to the Service Content not expressly granted to you under these Terms. You acknowledge and agree that your use of the Services does not grant you any ownership to any material, content, or data that you may access by or through your use of the Services.

c) User Content You understand that all content created or provided by Users ("User Content"), including, but not limited to, account information and communications with other Users, whether privately or publicly transmitted on the Platform, is the sole responsibility of the person from which such User Content is originated. You acknowledge and agree that you are responsible for any User Content that you may create, post, share, transmit or otherwise make available via the Services. We will not be responsible in any way for any User Content uploaded or otherwise provided via the Services. You acknowledge that we may or may not pre-screen User Content, but that we have the right, but not the obligation, in our sole discretion, to permanently remove, un-remove, and/or delete User Content. You agree that you shall bear all the risks associated with your use of any User Content and you further acknowledge that you bear the sole risk for reliance on any User Content available on or through the Services. When you submit any User Content, you grant Supersize an irrevocable, fully-sublicensable, perpetual, worldwide, royalty-free, non-exclusive license to use, distribute, reproduce, modify, adapt, publish, broadcast, sell, translate, sublicense, and/or create derivative works of such User Content, without any notice or compensation to you or any other person ("User Content License"). You represent and warrant that you have all the rights, power, and authority necessary to grant the User Content License and that any User Content you submit or otherwise post via the Services is and shall be your own original work or work which you are authorized to supply. You irrevocably and unconditionally waive all moral rights you may have, now or in the future, in any such User Content. Please note that User Content does not necessarily reflect the views of Supersize, and Supersize disclaims all responsibility for any such User Content and for any losses or expenses resulting from the use or appearance of any User Content.

You are solely responsible for your interactions with other Users of the Services. We reserve the right, but are under no obligation, to monitor such interactions between you and other Users of the Services. You acknowledge and expressly consent to the accessing, preserving, and disclosing of your account information and User Content if required to do so by law or upon our good faith belief that such access, preservation or disclosure is reasonably necessary to: (a) comply with legal process; (b) enforce these Terms; (c) respond to claims that any User Content violates the rights of third-parties; (d) respond to your requests for customer service; or (e) protect our rights, property, and/or those of our licensors, licensees, affiliates, staff, Users, or the public.

d) Submissions You agree that all questions, comments, suggestions, ideas, feedback or other information about the Services ("Submissions") provided by you are non-confidential, and Supersize shall be entitled to the unrestricted use and dissemination of Submissions for any purpose, commercial or otherwise, without acknowledgement or compensation to you. Anything you transmit or post (including, Submissions or User Content) may be used by Supersize or its affiliates for any purpose. Furthermore, you acknowledge that Supersize is free to use any ideas, concepts, know-how or techniques contained in any communication you send to us for any purpose, including, but not limited to, developing, manufacturing and marketing products or services, without any additional compensation or other liability or obligation whatsoever to you

e) DMCA Notification If you believe that your copyright has been infringed, please provide a written notice to support@supersize.gg meeting all of the requirements of the Digital Millennium Copyright Act ("DMCA"). Your notice should contain the following:

i. An electronic or physical signature of the person authorized to act on behalf of the owner of the copyright or other intellectual property interest;

ii. A description of the copyrighted work or other intellectual property that you claim has been infringed;

iii. A clear description of where the material that you claim is infringing is located on the Service;

iv. Your address, telephone number, and email address;

v. A statement by you that you have a good faith belief that the disputed use is not authorized by the copyright owner, its agent, or the law; and

vi. A statement by you, made under penalty of perjury, that the above information in your notice is accurate and that you are the copyright or intellectual property owner or authorized to act on the copyright or intellectual property owner's behalf.

13. Third-Party Websites

The Services may include links to other websites or resources. You understand and agree that Supersize has no control over the availability of any such third party websites or resources and is not liable for any content, products, services, or other materials on any third party websites. You further acknowledge and agree that Supersize is not responsible or liable for any damage or loss caused or alleged to be caused by your use of or reliance on any such content, products, services, or materials provided by any third party websites or resources. Any dealings you have with third parties while using the Services are between you and the third party, and you agree that Supersize is not liable for any loss or claim that you may have against any such third party.

14. Indemnification and Release

To the maximum extent permitted by applicable law, you agree to defend, indemnify, release, and hold harmless Supersize, its licensors, licensees, and affiliates, and each of the foregoing's respective directors, officers, employees, agents, service providers, contractors, licensors, suppliers, subsidiaries, successors, and assigns (collectively, "Indemnified Parties") from and against any and all losses, third-party claims, liabilities, damages, judgments, awards, losses, costs, expenses, or fees (including reasonable attorneys' fees) (collectively, "Claims") arising out of or relating to: (a) your breach of these Terms; (b) your use, access, or receipt of any Services in accordance with these Terms; (c) any acts you take or fail to take relating to your use of the Services; (d) your receipt, ownership, use or misuse of any prize; and (e) claims based on publicity, defamation, or invasion of privacy. You agree that if any of the foregoing Indemnified Parties are the defendant, recipient, or target of a Claim, such Indemnified Party may take exclusive control of the defense or settlement of such claim made against them; provided, the foregoing shall not affect your duty to indemnify as set forth herein.

If you are a California resident, you waive California Civil Code Section 1542, which says: "A general release does not extend to claims which the creditor does not know or suspect to exist in his favor at the time of executing the release, which if known by him must have materially affected his settlement with the debtor." If you are a resident of another jurisdiction, you waive any comparable statute or doctrine

15. Warranty Disclaimer

Supersize does not warrant that your use of the Services is lawful in any particular jurisdiction and, in any event, Supersize specifically disclaims such warranties. You understand that by using the Services, you represent and warrant that your activities are lawful in every jurisdiction where you access or use the Services. Your use of the Services is at your sole risk. The Services are provided on an "AS IS" and "AS AVAILABLE" basis. Except as otherwise expressly provided in these Terms, Supersize expressly disclaims all warranties of any kind pertaining to the Services, whether express or implied, including, but not limited to, the implied warranties of title, merchantability, fitness for a particular purpose, satisfactory quality, security, accuracy, availability, use of reasonable care and skill, and non-infringement, as well as warranties arising by usage of trade, course of dealing, and course of performance. Supersize makes no warranty that (i) the Services will meet your requirements, (ii) the Services will be uninterrupted, timely, secure, or error-free or free of viruses or bugs, (iii) the results that may be obtained from the use of the Services will be accurate or reliable, or that (iv) any errors in or relating to the Services will be corrected. Any material, content, or information downloaded or otherwise obtained and/or used through the Services is done at your own risk and you will be solely responsible for any damage to your system or loss of data that results from the download of any such material, content or information. No advice or information, whether oral or written, obtained by you from Supersize on or through the Services shall create any warranty not expressly stated in these Terms.

16. Limitation of Liability

You understand and agree that under no circumstance will Supersize be liable to you for indirect, incidental, special, or consequential damages, including, but not limited to, lost profits, property damage, goodwill, use, data, or other tangible or intangible losses or any other damages based on contract, tort, strict liability, or any other legal theory resulting from using the Services or the inability to use the Services; unauthorized access to or alteration of your transmission or data; statements or conduct of any third party on the Platform or Services; or any other matter relating to the Platform or Services. Notwithstanding anything to

the contrary contained herein, Supersize's liability to you for any cause whatsoever and regardless of the form of action, will at all times be limited to the amount, if any, paid by you to Supersize for general use of the Platform or Services in the last six (6) months, or, if greater, one hundred dollars ($100).

Some jurisdictions do not allow the disclaimer or exclusion of certain warranties or the limitation or exclusion of liability for incidental or consequential damages. Accordingly, some of the above limitations set forth above may not apply to you or be enforceable with respect to you. If you are dissatisfied with any portion of the Service or with these Terms, your sole and exclusive remedy is to discontinue use of the Services.

17. Dispute Resolution (Arbitration)

THIS SECTION CONTAINS AN ARBITRATION PROVISION. YOU AGREE THAT IF WE CANNOT RESOLVE ANY DISPUTE RELATING TO YOUR USE OF THE SERVICES, ALL DISPUTES ARISING UNDER THESE TERMS SHALL BE SETTLED IN BINDING ARBITRATION IN ACCORDANCE WITH THE PROVISIONS SET FORTH BELOW.

a) Initial Dispute Resolution You may contact us at support@supersize.gg regarding any concerns, questions, problem or dispute you may have regarding the Services. We agree to use our best efforts to resolve and settle any dispute, claim, question, or disagreement. If we do not reach an agreed upon solution within a period of 30 days following receipt of written notice, then either party may initiate binding arbitration as the sole means to resolve claims, subject to the terms set forth below.

b) Arbitration Agreement You agree that any and all disputes or claims, whether arising out of or relating to these Terms (including any alleged breach thereof), your use of the Services, or any and all other aspect of the relationship or transactions between us, shall be resolved exclusively through final and binding arbitration in accordance with the terms of this Arbitration Agreement. The arbitrator shall have exclusive authority to resolve all disputes arising out of or relating to the interpretation, applicability, enforceability or formation of these Terms, including, but not limited to any claim that all or any part of these Terms are void or voidable, or whether a claim is subject to arbitration. You agree that by entering into these Terms, you and Supersize are each waiving the right to a trial by jury or to participate in a class action. Your rights will be determined by a neutral arbitrator, not a judge or jury. The Federal Arbitration Act governs the interpretation and enforcement of this Arbitration Agreement.

c) Class Action Waiver You agree that you shall bring claims only on an individual basis and not as a plaintiff or class member in any purported class or representative action or proceeding. Unless we agree otherwise, the arbitrator may not consolidate or join more than one person’s or party’s claims and may not otherwise preside over any form of a consolidated, representative, or class proceeding. The arbitrator shall award relief (including monetary, injunctive, and declaratory relief) only in favor of the individual party seeking relief and only to the extent necessary to provide relief necessitated by that party’s individual claim(s).

d) Arbitration Procedures Arbitration will be administered by the American Arbitration Association (“AAA”) under its applicable rules and procedures, excluding any rules or procedures governing or permitting class actions. The arbitrator shall be empowered to grant whatever relief would be available in a court under law or in equity. The arbitrator’s award shall be written, binding on the parties, and may be entered as a judgment in any court of competent jurisdiction.

Exclusion Notwithstanding the foregoing arbitration provisions, in no event shall Supersize be precluded or delayed from seeking and obtaining temporary, preliminary and/or permanent injunctive relief, without the posting of any bond or proving of actual damages, against infringement or other violation of its claimed intellectual property rights in a court of appropriate jurisdiction.

e) Confidentiality All aspects of the arbitration proceeding, and any ruling, decision, or award by the arbitrator, will be strictly confidential for the benefit of all parties.

f) Severability If the arbitrator decides that any term or provision of this Arbitration Agreement (other than the subsection (c) titled “Class Action Waiver” above) is invalid or unenforceable, the parties agree to replace such term or provision with a term or provision that is valid and enforceable and that comes closest to expressing the intention of the invalid or unenforceable term or provision, and this Arbitration Agreement shall be enforceable as so modified.

g) Opt-Out You have the right to opt-out and not be bound by the Arbitration Agreement and class action waiver provisions set forth above by sending notice of your decision to opt-out to the following email address: support@supersize.gg. The notice must be sent within 30 days of your first registration of your account; otherwise you shall be bound to arbitrate disputes in accordance with the terms of the Arbitration Agreement.

h) Statute of Limitations You agree that regardless of any statute or law to the contrary, any claim or cause of action arising

out of or related to use of the Service or these Terms must be filed within one (1) year after such claim or cause of action arose or be forever barred.

18. Additional Information

a) Entire Agreement These Terms constitute the entire agreement between you and Supersize and govern your use of the Services, superseding any prior agreements between us with respect to your use of the Services. These Terms shall be binding on your successors, heirs, personal representatives, and permitted assigns.

b) Governing Law These Terms will be governed by the laws of the State of New York without regard to its conflict of law provisions. With respect to any disputes or claims not subject to arbitration, as set forth above, you agree to submit to the personal and exclusive jurisdiction of the state and federal courts located in New York County, New York.

c) No Waiver Supersize's failure to exercise or enforce any right or provision of these Terms will not constitute a waiver of such right or provision.

d) No Intended Third-Party Beneficiary Nothing in these Terms shall create or confer any rights or other benefits in favor of any third parties except as specifically provided herein.

e) Relationship of the Parties Nothing in these Terms shall create or be deemed to create a partnership, agency, trust arrangement, fiduciary relationship or joint venture between the parties.

f) Severability If a court of competent jurisdiction deems any provision of these Terms invalid, the invalidity of such provision shall not affect the validity of the remaining provisions of these Terms, which shall remain in full force and effect.

g) Assignment You may not assign or transfer any of your rights or obligations under these Terms without our prior written consent, which may be withheld in our sole discretion. We may assign rights or delegate duties under these Terms to an affiliate, acquiring company, or subsidiary in our sole discretion.

h) Headers The section titles contained in these Terms are for convenience only and have no legal or contractual effect.

i) Electronic Communication and Notices You consent to receive electronic communications, and you agree that all agreements, notices, disclosures, and other communications we provide to you electronically satisfy any legal requirement that such communication be in writing. Notices may be made via email associated with your account. Supersize may also provide notices to you of changes to these Terms or other matters by displaying notices or links to notices generally on the Platform. You hereby agree to the electronic delivery of notices, policies, and records of transactions initiated or completed by us or via the Services. You hereby waive any rights or requirements under any statutes, regulations, rules, ordinances, or other laws in any jurisdiction which require an original signature for delivery or retention of non-electronic records